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This text is an expanded version of the paper written for the Zakireen Seminar held in London, UK in October 2005. It should be read as a follow-up to the previous issue of al-Furqan on “Gender apartheid...” While the previous article was written for a general audience, this addresses the Shi’a audience in particular.

Introduction

The topic of “mixed gathering” has been a very controversial issue amongst the South Asian

Shi’as. Almost all Shi’a organizations and centres in the West, at one time or another, have gone through debates and discussions on “mixed gatherings”. The purpose of this paper is to briefly discuss the issue and identify points of permissibility or otherwise in mixed gatherings. What is a “mixed gathering”? What is the norm in Islam as far as interaction between man and woman is concerned? When is a mixed gathering allowed and when is it not allowed?

1. What is “Mixed Gathering”?

It is important to identify what is meant by “mixed gathering”. For the purpose of this paper, it means a gathering of Muslim men and women with hijab without partition and/or without a designated area for either gender. This paper does not deal with the Muslim gatherings where hijab is not practiced or enforced. It goes without saying that such “mixed gathering” where hijab is not observed or enforced is not acceptable from the Islamic point of view. Free and unrestricted interaction between those who are not mahram to one another is not permissible.

2. What is the Norm in Islam?

And so, let us raise the question: **When members of the opposite gender step outside of their mahram circle, what should be their mode of behaviour?**

“Islam says neither imprisonment nor mixing, instead the sanctity [of hijab and decent interaction] is to be observed. This is the tradition of Muslims right from the days of the Messenger of Allah (S) when women were not prevented from participation in the gatherings – of course, always preserving the climate of sanctity between the two sexes. “Women did not mix with men in the masajid or the gatherings, or even in the streets and alleys. Mixing of women with men in some gatherings, like the crowd observed in some of our holy shrines, is indeed against the wishes of the Divine Law-Maker”^{[1](#)}.

The norm has been in Muslim societies that whenever there is a gathering of Muslims, especially of a religious nature, men and women are segregated either by a designated separate space or by a barrier (i.e., curtain or partition). This norm can be traced back through the centuries to the lifestyles of the Prophet of Islam and the Imams of Ahlul Bayt themselves.

1. Even though women came in hijab to the masjid for prayers, the Prophet preferred that at the time of leaving the mosque, the men stay behind so that the women could exit the mosque before the men^{[2](#)}. Later on, still in his lifetime, a separate entrance was made for ladies so that there would be no chance for mingling inside^{[3](#)}. The Prophet did not even like the mingling of men and women in the streets^{[4](#)}. Even when women participated in the prayer at the mosque, the men and the women did not mingle; they maintained their distance^{[5](#)}. That is partly why some women asked the Prophet to dedicate a day for “ladies only,” so that they could meet him and ask questions away from men^{[6](#)}.

2. When the Lady of Light, Fatimah az-Zahra’, went to claim her right of Fadak from Abu Bakr in the mosque, “a vast crowd from the Muhajirin and the Ansar had gathered; therefore, a white curtain was erected between them and her...”^{[7](#)}

3. Al-Kumayt al-Asadi, the famous Shi’a poet of the Umayyid era, once visited Imam Muhammad al-Baqir (‘a) and asked permission to recite an eulogy for Imam Husayn (‘a). He narrates that “the Imam [al-Baqir] and Abu ‘Abdullah [as-Sadiq] cried, and I heard a lady crying behind the curtain...”^{[8](#)}

4. ‘Abdullah bin Ghalib, a Shi’a poet, recited an eulogy in presence of Imam Ja’far as-Sadiq (‘a). We are told that in that majlis, “a lady was weeping from behind the curtain”^{[9](#)}.

5. Fuzayl bin ar-Rasan once visited Imam Ja’far as-Sadiq (‘a) during the days when Zayd bin ‘Ali had been martyred. The Imam praised Zayd ash-Shahid. Fuzayl asked permission to recite an eulogy. The Imam asked him to wait, and then ordered that the curtains be put up and the doors be opened. Then Fuzayl recited the eulogy. He says, “I heard loud wailing from behind the curtain”^{[10](#)}.

6. Di’bal al-Khuza’i, a famous Shi’a poet of the ‘Abbasid era, once visited Imam ‘Ali ar-Ridha (‘a). The

Imam asked him to recite an eulogy for Imam Husayn (‘a). “Then he got up and drew a curtain between us and his family, and asked the ladies of the family to sit behind the curtain so that they can also mourn on al-Husayn... [11](#)”

7. Once Imam ‘Ali an-Naqi (‘a) sent for one of his Shi‘a neighbours. The neighbour got ready and went to the Imam. He says, “When I went in living room, I saw him talking to his son, Abu Muhammad [al-‘Askari], and his sister, Hakima, who was behind the curtain...” [12](#)

8. One of the important sources of knowledge and guidance during the Minor Occultation was the above-mentioned Hakima, the great-aunt of the Twelfth Imam (‘a). We see the narration of Ahmad b. Ibrahim: “I met Hakima...in the year 262 [AH] and talked to her from behind the curtain and asked her...” [13](#)” These examples clearly show the continuous

norm followed by the Prophet and the Imams of Ahlul Bayt – all the way from the time of the Prophet to the Minor (ghaybat) Occultation – that there was segregation between the two genders in public gatherings. The examples of Lady Fatimah az-Zahra’ and Hakima Khatun show that while Islam does not allow free mixing between members of opposite gender, it allows decent and sanctified interaction. Women can play important roles in religious socio- political arenas of the ummah as long as the interaction is sanctified by Islamic values of decency and modesty.

3. An Example from the Qur’an

The story of Prophet Musa and the daughters of Prophet Shu‘ayb is a good guideline for us. After Musa fled Egypt and reached Madyan, the Qur’an (28:23–28) says:

And when he came to the watering well of Madyan, he found on it a group of men who were drawing water, and he saw besides them two women holding back their flocks.

He went to the two ladies and asked: “What is the matter with you that you are holding back your flock?” They said, “We cannot draw water until the shepherds move away with their sheep from the water well.” Then as if to answer an unspoken question that ‘why you are doing this job,’ they continued: “and our father is a very old man so he cannot do this himself.”

On realizing the modesty of the ladies who didn’t like to mingle with strange men, Musa offered to help them and he watered their sheep for them, and then went back to the shade for resting. Since he was hungry and tired, he prayed: “My Lord! Surely, I stand in need of whatever good You may send down to me.” When the two daughters of Shu‘ayb narrated the incident to him, he asked one of them to call Musa so that he could thank him and pay him for the help.

Then, one of the two women came to him (Musa) walking modestly. She said, “My father invites you so that he may recompense you with the wage of drawing water for us”. *She led the way. Musa asked her to let him go forward and guide him from the behind “because we of the household of prophets do not*

look at the backs of women.”

Once they reached Shu‘ayb’s house, Musa narrated his problem of how he fled from Fir‘awn. Shu‘ayb said, “Do not be afraid, now you are safe from the unjust people.”

One of the girls said, “O my father, since we do not have a young man in the family, employ him to work for you; surely the best person that you can employ is the one who is strong and trustworthy. This man has both qualities.”

Shu‘ayb asked his daughter that “you know about his strength because he helped in watering the sheep but how do you know that he is also trustworthy?” She described how Musa asked to walk ahead of her; that reflected his modesty. And so Prophet Shu‘ayb then offered the hand of one of his daughters to Musa and they got married. [14](#)

We can easily deduce the following principles from this story:

- There can be no free mixing and mingling of men and women who are not mahram to one another.

According to the great jurist of the last century, Sayyid Kazim al-Yazdi:

و مکروه اختلاط النساء بالرجال

“Mingling of men and women is makruh [15](#)”.

- Ladies may, whenever necessary, step outside of their homes and participate in the socio-political economic spheres of society but they must do so with modesty (haya’).
- Even in permissible interaction, haya’ must be observed in talking to and interacting with a ghair mahram person, as well as in controlling one’s glances towards non-mahram men or women [16](#).

4. Acceptable Forms of Mixed Gathering

In view of the above, let us see **when is a mixed gathering allowed? Or when is the removal of partition/barrier permissible?**

Whether a mixed gathering is proper or not depends on the **purpose** of the gathering:

- If the gathering is of a nature where segregation and/or partition do not defeat its purpose, then a mixed gathering should not be encouraged.
- If the gathering is of a nature where segregation and/or partition will defeat its purpose, then a mixed gathering is permissible with the condition of hijab and decent behaviour.

Let us look at some examples: majlis/milad, lecture; madrasa/class, workshop, meeting, conference and seminar, marriage ceremony and reception

Majlis & Milad

Normally, the majalis are of a monologue nature where the lecturer speaks and the audience listens. The purpose can be achieved with segregation and/or partitions between the two genders, and so I don't see any reason to remove the partition/barrier in majlis – more so in milad (celebrations) where women come dressed up with make-up and jewellery. (It is needless to remind that if a lady applies visible make up on her face, then she cannot show her face to the non-mahram, she will have to put a veil on her face.)

In a segregated area, the women do not have to worry about wearing hijab, and can be relaxed and free in meeting one another.

Lecture

Normally, at the end of the lecture, the audience is allowed the opportunity for interaction with the speaker in the question-answer session. In this kind of program, both genders should have equal visual access to the speaker for them to participate in the question-answer session. When the seating arrangements are done properly, having a partition between men and women in the audience will not defeat the purpose and therefore I don't see any reason to remove the partition between the genders in the audience.

Madrasa & Classroom

Teaching involves a lot of interaction between the teacher and the students, and also, sometimes, between the students themselves; and so having partitions will hinder the purpose of such a program. However, then the teacher has to ensure that the boys are seated separately from the girls, and there should not be any indecent interaction between the two genders – neither in the classrooms nor in the hallways.

It is obvious that full hijab must be observed in such a setting; and the teachers/organizers are responsible for maintaining the Islamic environment in such events.

It is worth mentioning that, according to a report presented in November 2004, a Richmond Hill public school (in Ontario, Canada) started a pilot-project of offering gender-separated classes. After three years of the experiment, the teachers reported “more productive classes, greater student participation and higher grades in both genders.” (Instead of blindly following others in name of ‘progress’ and ‘modernization,’ we should uphold our values and let the rest of the world catch up with us!)

Seminar & Workshop

The nature of workshops involves interaction between the moderator and the participants as well as among the participants themselves. In such a gathering, participants may interact with one another in a formal/professional manner with adherence to full hijab.

Conference & Committee Meeting

The same format as the workshop will apply here also.

Marriage Ceremony & Reception

In marriage ceremonies and receptions, people normally come dressed up, especially the women who use cosmetics and jewellery, and so any kind of mixing and mingling between members of opposite is not proper at all.

Asking non-mahram men and women to sit at the same table in a wedding reception surely puts one into a situation of unlawful glance and the chances of improper mingling increases.

Keeping the Islamic values in mind, the only decent format, in a wedding reception, would be for the men and the women to be seated in segregated areas.

(It has been observed that even when the invitation card for a mixed wedding event says ‘Islamic dress code is mandatory,’ there is no guarantee of enforcing it or ensuring that it is a proper hijab. In such gatherings, the problem is not only bi-hijabi – no hijab, it is also bad-hijabi – pointless hijab.)

PROGRAM & EVENT	INTERACTION BETWEEN SPEAKR & AUDIENCE	INTERACTION BETWEEN PARTICIPANTS	PARTITION
1. Majlis & Milad	NO	NO	FULL
2. Lecture	YES	NO	PARTIAL
3. Madrasa & Classroom	YES	YES	NOT NECESSARY

PROGRAM & EVENT	INTERACTION BETWEEN SPEAKR & AUDIENCE	INTERACTION BETWEEN PARTICIPANTS	PARTITION
4. Seminar & Workshop	YES	YES	NOT NECESSARY
5. Conference & Committee Meeting	YES	YES	NOT NECESSARY
6. Marriage Ceremony & Reception	NO	NO	FULL

[1.](#) Murtadha Mutahhari, *Mas'alat al-Hijab*, Arabic translation by al-Khalili (Tehran: al-Bi'tha, 1407) p. 243.

The statement that “the crowd observed in some of our holy shrines” refers to the pre-revolutionary era of Iran when the area around the actual shrines was not segregated but now there is a screen separating the men from the women.

[2.](#) *Sahih al-Bukhari*, vol. 1, p. 457–459.

[3.](#) *Sunan Abu Da'ud*, vol. 1, p. 113.

[4.](#) *Sunan Abu Da'ud*, vol. 2, p. 533.

[5.](#) *Sahih al-Bukhari*, vol. 1, p. 78. After giving his sermon, the Prophet went towards the women thinking that they had not heard his sermon and so he repeated it.

[6.](#) *Sahih al-Bukhari*, vol. 1, p. 80.

[7.](#) Ibn Abil Hadid al-Mu'tazili, *Sharh Nahju 'l-Balagha*, vol. 16, p. 211.

[8.](#) Al-Khazzaz al-Qummi, *Kifayatu 'l-Athar* (Qum: Bidar, 1401AH) p. 248–249.

[9.](#) Ja'far b. Muhammad b. Qulawayh Qummi, *Kamilu 'z-Ziyarat* (Qum: Nashr al-Faqahat, 1417 AH) p. 209–210.

[10.](#) Shaykh at-Tusi, *Ikhtiyat Ma'rifati 'r-Rijal*, vol. 2 (Qum: Ali 'l-Bayt, 1404 AH) p. 570.

[11.](#) M. B. Majlisi, *Bihar al-Anwar*, vol. 45, p. 257.

[12.](#) As-Saduq, *Kamal ud-Din*, p. 418.

[13.](#) As-Saduq, *Kamal ud-Din*, p. 507.

[14.](#) Sayyid M Rizvi, *An Explanatory Translation of the Qur'an*, vol. 4 (forthcoming). Note that the words in italics are explanatory remarks added to further explain the context of the verses.

[15.](#) S. Kazim al-Yazdi, *al-'Urwatu 'l-Wuthqa*, vol. 2 (Beirut: Mu'assasa al-A'lami, 1988/1409) p. 805 with annotations from all the contemporary mujtahideen and none of them have written any dissenting remarks on this view. The fatwa of Sayyid al-Yazdi is based on the reliable hadith narrated by Ghiyath bin Ibrahim from Imam as-Sadiq ('a) who said, “Amiru 'l-Mu'mineen ('a) said, ‘O People of Iraq! I have been informed that your women rub shoulders with men on the streets – do not you feel ashamed?’

يا أهل العراق، نئت أن نساءكم يدافعن الرجال في الطريق، أما تستحون؟

al-Hurr al-'Amili, *Wasa'il ash-Shi'ah*, vol. 14, p. 174.

Also see the transcript of Sayyid al-Khu'i's lectures by Muhammad Taqi al-Khu'i, *Mabani 'l-'Urwatu 'l-Wuthqa*, vol. 1, p. 115; also see Sayyid Muhsin al-Hakim, *Mustamsaku 'l-'Urwah*, vol. 14 (Qum: Makbatu 'l-Mar'ashi, 1404) p. 54–55.

[16.](#) Also see the Qur'an 24:30–31.

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